

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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A. S., an infant by his mother and natural guardian
TAISHA SANTIAGO,

Plaintiff,

-against-

THE CITY OF NEW YORK,
CARLOS SANDOVAL and
PETERSON SIMEBADIA,

Defendants.

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To the above-named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 25, 2024

SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

The City of New York: c/o NYC Corp. Counsel, 100 Church St., New York, NY 10006

P.O. Carlos Sandoval: c/o NYPD PSA 8, 2794 Randall Ave, Bronx, NY 10465

P.O. Peterson Simebadia: c/o NYPD PSA 8, 2794 Randall Ave, Bronx, NY 10465

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

A. S., an infant by his mother and natural guardian
TAISHA SANTIAGO,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK,
CARLOS SANDOVAL and
PETERSON SIMEBADIA,

Defendants.

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Plaintiff, by his attorneys SIVIN, MILLER & ROCHE, LLP, as and for his
complaint herein, alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, Plaintiff A. S. (hereinafter “Plaintiff”), was
and is an infant under the age of eighteen years, and was and is a resident of the County of
Bronx, City and State of New York.

2. That at all times herein mentioned, Taisha Santiago was and is the mother and
natural guardian of Plaintiff, and was and is a resident of the County of Bronx, City and State of
New York.

3. That at all times herein mentioned, Defendant The City of New York
(hereinafter “the City”) was and is a municipal corporation, duly organized and existing under
and by virtue of the laws of the State of New York.

4. That at all times herein mentioned, the City operated, controlled, managed, and
maintained the New York Police Department (hereinafter the “NYPD”).

5. That at all times herein mentioned, Defendant Carlos Sandoval (Sandoval) was and is a police officer employed by the NYPD.

6. That at all times herein mentioned, Sandoval was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Sandoval was acting under color of state law.

8. That at all times herein mentioned, Defendant Peterson Simebadia (Simebadia) was and is a police officer employed by the NYPD.

9. That at all times herein mentioned, Simebadia was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Simebadia was acting under color of state law.

11. That prior to the institution of this action, and within ninety days of the accrual of the causes of action herein, a notice of claim and intention to sue was duly served upon and filed with Defendants; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and Defendants have neglected and/or refused to make adjustment or payment thereon; and this action is being commenced within one year and ninety days after the causes of action accrued herein.

THE FACTS

12. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

13. That on or about July 14, 2023, at or around 8:30 p.m., Plaintiff was a lawful pedestrian in the vicinity of 1940 Turball Avenue, Bronx, NY.

14. That while Plaintiff was a lawful pedestrian at the aforementioned location, he was forcibly seized and detained by NYPD officers, including but not limited to Sandoval and Simebadia (hereinafter referred to collectively as “the officers”), without probable cause or reasonable suspicion to believe that Plaintiff had committed or was about to commit any crime or criminal violation.

15. That upon seizing Plaintiff, the officers also engaged in a use of excessive and unjustified force against plaintiff, including but not limited to slamming Plaintiff against a fence, handcuffing Plaintiff, and discharging chemical spray at Plaintiff.

16. That upon seizing Plaintiff, the officers also forcibly and invasively searched Plaintiff, without his consent, without a warrant, and without probable cause or reasonable suspicion to believe that plaintiff had committed or was about to commit any crime or criminal violation.

17. That following their illegal search and seizure of Plaintiff, the officers arrested and imprisoned Plaintiff, without a warrant and without probable cause to believe that Plaintiff had committed or was about to commit a crime or criminal violation.

18. That on or about July 14, 2023, the officers also initiated and/or caused to be initiated a criminal prosecution of Plaintiff, in which Plaintiff was charged with crimes, including criminal possession of a weapon, of which he was innocent and of which the officers knew Plaintiff to be innocent.

19. That the aforesaid prosecution was initiated without probable cause, and with malice.

20. That in support of the aforesaid prosecution, Sandoval and Simebadia knowingly made false statements and representations to fellow officers and to prosecutors

regarding the circumstances of Plaintiff's arrest, including but not limited to a statement that Sandoval observed Plaintiff grab what appeared to be an L shaped silver handle.

21. That the aforesaid statements by Sandoval and Simebadia were material to a determination whether there was probable cause to seize, search, arrest, and prosecute Plaintiff, and were designed and likely to influence others as to Plaintiff's guilt in connection with the criminal charges brought against him.

22. That as a result of the aforesaid prosecution, and false statements, Plaintiff endured a significant deprivation of his liberty, including but not limited to his ability to travel, and a requirement that he make several appearances at a tribunal before which the criminal charges were pending.

23. That on or about August 28, 2023, the criminal proceeding against Plaintiff terminated in Plaintiff's favor, and without a conviction.

24. That each of the officers acted jointly and in concert with one another.

25. That each of the officers observed the illegal and unconstitutional conduct in which their fellow officers engaged, each had reasonable opportunities to intervene to prevent and/or stop that conduct, and each deliberately and intentionally failed and refused to do so.

26. That the actions of the officers were intentional and malicious in nature.

27. That as a result of the actions of the officers, Plaintiff suffered significant emotional and physical injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred medical and other expenses, was deprived of his liberty, and has been otherwise damaged.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery Under NY State Law)

28. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

29. That the aforementioned actions of the officers constituted an assault and battery upon Plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment Under NY State Law)

30. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

31. That the aforementioned actions of the officers constituted a false arrest and a false imprisonment of Plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under NY State Law)

32. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

33. That the aforementioned actions of the officers constituted a malicious prosecution of Plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 USC § 1983 Claim Arising from Fourth & Fourteenth Amendment Violations)

34. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

35. That the aforementioned actions of the officers in searching and seizing, assaulting and battering, falsely arresting and imprisoning, and maliciously prosecuting Plaintiff, constituted illegal searches and seizures of Plaintiff, in violation of rights guaranteed to Plaintiff under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle Plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

36. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

37. That the aforesaid actions of Sandoval and Simebadia constitute a denial of Plaintiff's right to a fair trial, in violation of Plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle Plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(NYC Administrative Code § 8-802)

38. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

39. That the aforesaid actions by defendants constitute unreasonable searches and seizures and uses of excessive force in violation of Plaintiff's rights pursuant to NYC Administrative Code § 8-802, and entitle Plaintiff to recover monetary damages under NYC Administrative Code § 8-803.

SEVENTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 USC § 1983 Claim Arising from Failure to Intervene)

40. Plaintiff repeats and realleges each and every allegation set forth above as

though fully set forth at length herein.

41. That the aforementioned actions of the officers in failing to intervene to prevent and/or stop the illegal conduct of their fellow officers constituted a violation of rights guaranteed to plaintiff under the Fourth, Fifth, Sixth, and Fourteenth Amendments to the U.S. Constitution, and the NYC Administrative Code § 8-802, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983 and pursuant to NYC Administrative Code § 8-803.

EIGHTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training, and Retention)

42. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

43. That the aforesaid incident and resulting damage to plaintiff were due to the negligence of the City, its agents, servants and/or employees, in the hiring, training, and retention of the officers.

44. That all of the causes of action herein fall within one or more of the exceptions set forth in CPLR Article 16 with respect to joint and several liability.

WHEREFORE, Plaintiff demands judgment against Defendants, and each of them, on the foregoing causes of action for compensatory damages and punitive damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and attorney's fees against Defendants pursuant to 42 U.S.C. § 1988 and NYC Administrative Code § 8-805, and Plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
April 25, 2024

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the Plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in Plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
April 25, 2024

Edward Sivin
EDWARD SIVIN